

Date: 8/6/1901 (replaced by new rules on 3/7/2013)

Rules and Regulations Governing Rose Hill Cemetery

Owing to the lack of understanding and the necessity of order, we the members of the Lamoni branch of the Reorganized Church of Jesus Christ of Latter Day Saints and the patrons of Rose Hill Cemetery adopt the following rules and regulations to govern said cemetery:

Rule 1: It shall be known as Rose Hill Cemetery, and the care and control of same shall be **vested** in a board of three trustees, appointed by the Lamoni branch, subject to instructions received by them from time to time by a vote of said branch. *[Note: original motion as adopted said "rested" but all subsequent readings and copies said "vested"]*

Rule 2: Election of officers. Elect one for one year, one for two and one for three years, then the term of office of said trustees shall be for three years, one to be elected at each annual business meeting of the branch. One of the trustees to act as chairman, one as secretary, and the other as treasurer of said board. Officers of trustees to be appointed or elected by themselves; no trustees eligible to more than one office on the board at the same time. In case of removal by death or otherwise, the vacancy shall be filled by branch at next regular business meeting. The sexton shall be appointed by the trustees, and shall labor under their direction and shall not be one of the trustees. Said trustees to regulate his compensation.

Rule 3: Said trustees shall make a complete report, in writing to said branch at its regular annual business meeting, of all improvements made and moneys received and expended; said report to be audited by a committee appointed by said branch.

Rule 4: All money received from sale of lots or otherwise shall be used for improving and keeping up cemetery. The lots shall be sold by the trustees at regular established prices. The purchaser shall not be permitted to erect any monument or headstone on the lots until they have paid for same by cash or good note with approved security bearing legal interest, and have received a deed. The trustees may use their discretion about allowing burials on lots for which no deeds are issued.

Rule 5: All persons claiming lots and not holding deeds for same shall forfeit all rights to same if not settled for according to rule four (4) with sixty (60) days after receiving notice.

Rule 6: The branch through its trustees of Rose Hill Cemetery desire to leave the improvements of lots as far as possible to the taste of the owner, but in justice to all, it reserves the right given it by law to exclude or remove from any lot any headstone, monument or other structure, tree, plant or other object whatever, which may conflict with these regulations, or which it shall consider injurious to the general appearance of the grounds, but no tree growing within any lot shall be removed or trimmed without the consent of the trustees. No shade or forest trees shall be permitted to be planted on lots or alleys, but only in streets, and then under the direction of the trustees.

Rule 7: The trustees are empowered, if need be, to make one annual assessment, pro rata, on lot owners, not to exceed twenty five cents on each lot, for the purpose of improving and caring for said cemetery.

Rule 8: All interments on lots shall be restricted to the families of lot owner, except by written consent of lot owners.

Rule 9: No disinterments will be allowed without permission of the next of kin of the deceased.

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Rule 10: No inclosure around lot shall exceed eighteen inches in height, and if said inclosure is of wood or metal it shall be kept painted and in good condition.

Rule 11: All foundations for monuments or headstones shall be built under the supervision and advice of the trustees; provided, however, that every foundation must be as wide and as long as the base stone resting upon it, and must not project above the ground.

All foundations must extend low enough to reach solid clay.

Note: the following rule 11 paragraph is in the original 4/2/1901 proposal to the Lamoni branch and this rule passed without amendment on 8/6/1901, but it is missing from subsequent readings and copies.

Material for stone or marble work shall not be permitted to remain in cemetery any longer than shall be strictly necessary, and refuse and unused material must be removed as soon as the work is completed. In case of neglect, such removal will be made by the trustees at the expense of lot owners and contractors, who shall be severally responsible.

Rule 12: Said trustees shall have authority to provide, at their discretion, for the burial of all persons who are not provided for by friends or relatives.

Rule 13: Any act of vandalism, shall be promptly reported to the trustees for prosecution.

Rule 14: All officers heretofore for the management of said cemetery become vacant, and all rules and regulations conflicting with the above become null and void on adoption of the same.

Rule 15: The trustees are hereby directed to enforce the above and foregoing regulations, and to exclude from the cemetery any or all persons willfully violating the same.

The above rules and regulations were read and adopted by the Lamoni branch of the Reorganized Church of Jesus Christ of Latter Day Saints on August 6, 1901